

59.	Flash Funding Services, Inc. v. Hellenic, Inc. 2022-01241189	Plaintiff Flash Funding Services, Inc.'s motions to compel defendant Manuel Katsivalis to (1) respond to special interrogatories, set one (ROA 78) and (2) respond to request for production, set one (ROA 74) are GRANTED. Defendant M. Katsivalis shall serve code compliant responses, without objection to the interrogatories and requests for production within 15 days of this order. Any responsive documents are also ordered produced within 15 days of this order. Plaintiff is awarded sanctions against defendant M. Katsivalis in the amount of \$980.00 for each motion, totaling \$1960. Sanctions are payable to plaintiff through its attorney within 30 days of this order. Plaintiff shall give notice.
60.	Best Wheels and Tire, LLC v. Liquid Metal Motorsports, Inc. 2022-01288714	The motion by cross-defendants Best Wheel and Tires, LLC [BWT], Ernie Alfonso, Robert Batchelor and Diamond Auto Industries Corporation [Diamond] for judgment on the pleadings as to the cross-complaint by Liquid Metal Motorsports, Inc. [LMM] and James Owen is GRANTED in part, with leave to amend, and DENIED in part. (Code Civ. Proc., § 438 [authorizing motion].) Moving parties' request for judicial notice is GRANTED in part, in that the court takes judicial notice of the fact that the documents were filed with the respective government agencies, but not of the truth of their contents. (<i>Stevens v. Superior Court</i> (1999) 75 Cal.App.4th 594, 607-608.) The motion is GRANTED as to cross-defendant Diamond entirely, on grounds of failure to state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 438, subd. (c)(1)(B)(2).) The only basis of liability alleged as to this cross-defendant is as alter ego of cross-defendant BWT; however, alter ego is alleged as a conclusion only at ¶ 6, without sufficient supporting facts. (<i>Robbins v. Blecher</i> (1996) 52 Cal.App.4th 886, 892 [alter ego elements]; <i>Associated</i>